TENTATIVE RULINGS

DEPARTMENT C33

Judge Sandy N. Leal

August 20, 2026 at 10:00 AM

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative rulings: The Court endeavors to post tentative rulings on the Court's website in the morning, prior to the hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the Department for tentative rulings if tentative rulings have not been posted. The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5233. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.*, 205 Cal.App.4th 436, 442, fn. 1 (2012.))

Appearances: Department C33 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C33 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California.

All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time. All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at https://www.occourts.org/media-relations/civil.html before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at https://www.occourts.org/media-relations/aci.html. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at https://www.occourts.org/media-relations.aci.html. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this Department by either coming to the Department at the designated hearing time or contacting the Courtroom Clerk at (657) 622-5233 to obtain login information. For remote appearances by the media or public, please contact the Courtroom Clerk 24 hours in advance so as not to interrupt the hearings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1	***25-01452685*** ***Adams vs. Colliers International Group, Inc.***	**1) Demurrer to Amended Complaint** **2) Demurrer to Amended Complaint** **3) Motion to Strike Portions Of Complaint** **MOTION NO. 1:** Defendant Colliers International Group, Inc.'s ("CIGI") demurrer to the Second Amended Complaint ("SAC") filed by Plaintiff Irene Adams is OVERRULED. Second Cause of Action for Financial Elder Abuse: Defendant contends plaintiff Adams lacks standing to bring a claim for financial elder abuse. In support, Defendant cites *Hilliard v. Harbour* (2017) 12 Cal.App.5th 1006 (*Hillard*). In *Hilliard*, the plaintiff was the controlling shareholder, and presumably the founder of several companies. (*Id.* at p. 1008.) The companies took out loans from Wells Fargo over the years, secured by their assets. At a certain point, the loans went into default and plaintiff Hilliard began negotiating with Harbour, Wells Fargo's representative, about liquidating certain personal interests and providing further collateral to satisfy the debt. (*Id.* at pp. 1008-1009.) In final settlement of the debt, Hilliard agreed to sell a radio station by a date certain and give Wells Fargo the proceeds. However, he was unable to sell the radio station by that date, and Wells Fargo sold the loan to a new creditor, who instituted legal action against the companies and ultimately obtained a judgment. (*Id.* at pp. 1009-1010.) Hilliard filed a complaint with a single cause of action for financial elder abuse, alleging Wells Fargo took the companies from him for a wrongful use. (*Id.* at p. 1010.) Wells Fargo and Harbour filed a demurrer, claiming Hilliard lacked standing because his claim was derivative and not personal, and the trial court sustained it without leave to amend. (*Ibid.*) The court of appeal affirmed and extensively discussed *Sutter v. General Petroleum Corp.* (1946) 28 Cal.2d 525, 530 (*Sutter*) on which Plaintiff relies, as an example of a viable direct action for fraud in the shareholder context. (*Hilliard, supra,* 12 Cal.App.5th at pp. 1013-1014.) In *Sutter*, the plaintiff alleged that "by reason of the fraudulent representations of defendants, [plaintiff] was induced to do several things, namely, abandon his own oil development projects [and] devote his time to the project whereby [certain] facilities would be used [] to form and invest in a corporation (the Development Company)." (*Sutter, supra,* 28 Cal.2d at p. 530.) In *Sutter*, plaintiff "took steps in reliance upon the misrepresentations including the formation of the Development Company before that company was formed." (*Id.* at p. 531.) In that context, the California Supreme Court held that "the failure to perform the promises injured the Development Company ... but there was also a direct individual injury to plaintiff [] and ... the dual nature of the injury does not necessarily preclude an action by the stockholder as an individual." (*Ibid.*)

		As to *Sutter*, the *Hilliard* court explained that "The point of the Supreme Court opinion is that while Sutter lost his investment, which was represented by the value of the stock, and its reduction in value was the measure of his loss, the damages all flowed from the defendants' tort that preceded and induced the investment." (*Hilliard, supra,* 12 Cal.App.5th at pp. 1014.) The Court finds *Sutter* to be controlling under the facts alleged in the SAC. Although in *Sutter*, the plaintiff was induced by defendant's fraud to form a corporation and invest his money by reason of that fraud, the allegations, here, that Defendants induced Adams, to sell the triplex and invest in the TIC property at issue through their misrepresentations are sufficient under *Sutter*. (SAC, ¶¶ 7, 117, 128, 132-133.) Accordingly, the demurrer to the second cause of action is OVERRULED. <u>Eighth Cause of Action for Violation of Unfair Competition Laws</u>: Defendant contends plaintiff Adams lacks standing to bring a Business and Professions Code section 17200 claim. To have standing to bring a cause of action under Cal. Bus. & Prof. Code § 17200 et seq., a plaintiff must "(1) establish a loss or deprivation of money or property sufficient to qualify as injury in fact, i.e., economic injury, and (2) show the economic injury was the result of, i.e., caused by, the unfair business practice or false advertising that is the gravamen of the claim." (*Bower v. AT&T Mobility, LLC* (2011) 196 Cal.App.4th 1545, 1554.) Since the eighth cause of action rests on the same personal losses as alleged in the financial elder abuse cause of action, the SAC adequately pleads a cause of action for Business and Professions Code section 17200. Accordingly, the demurrer to the eighth cause of action is OVERRULED. <u>First and Third through Seventh Causes of Action</u>: Defendant contends that although the SAC does not identify Plaintiff Adams as a party asserting the First, Third, Fourth, Fifth, Sixth, and Seventh Causes of Action, the allegations in each of these causes of action assert that both Plaintiffs have suffered damages, and each cause of action seeks relief on behalf of both Plaintiffs. (SAC ¶¶148, 149, 158, 160, 168, 169, 178, 179, 185, and 186.) "A demurrer must dispose of an entire cause of action to be sustained." (*Fremont Indem. Co. v. Fremont Gen. Corp.* (2007) 148 Cal.App.4th 97, 119.) "[A] demurrer cannot rightfully be sustained to part of a cause of action or to a particular type of damage or remedy." (*Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1047.) Here, Defendant attacks the prayer and not any cause of action. Further, Plaintiffs state that West Palmyra is the sole plaintiff asserting these

		claims and the residual references to "Plaintiffs" in the damages paragraphs are an artifact of the FAC. (Opp., 17:26-28.) Therefore, the demurrer to First and Third through Seventh Causes of Action is OVERRULED. Moving Defendant to give notice. **MOTION NO. 2:** Defendant Colliers International Group, Inc.'s motion to strike portions of plaintiffs Irene Adams and West Palmyra Ltd.'s Second Amended Complaint ("SAC") is GRANTED with 20-days leave to amend. Defendant seeks to strike the request for treble damages under Civil Code section 3345 from the following portions of the SAC: Page 23, ¶106, lines 9-13; Page 31, ¶151, lines 2-6; Page 32, ¶161, lines 10-14; Page 33, ¶171, lines 14-18. Civil Code Section 3345 provides: "(a) This section shall apply only in actions <u>brought by, on behalf of, or for the benefit of</u> those individuals specified in paragraphs (1) to (3), inclusive, to redress unfair or deceptive acts or practices or unfair methods of competition. [¶] (1) Senior citizens, as defined in subdivision (f) of Section 1761. [¶] (2) Disabled persons, as defined in subdivision (g) of Section 1761. [¶] (3) Veterans, as defined in Section 18540.4 of the Government Code." (Civ. Code § 3345, subd. (a) [emphasis added].) Plaintiff West Palmyra Ltd. seeks treble damages pursuant to section 3345 in connection with the first cause of action for Violation of California Corporate Securities Law of 1968, third cause of action for Breach of Fiduciary Duty, fourth cause of action for Aiding and Abetting Breach of Fiduciary Duty, and fifth cause of action for Constructive Fraud. These causes of action are not being brought by plaintiff Adams or any other senior citizen. The SAC also does not sufficiently allege "on behalf of, or for the benefit of" plaintiff Adams. (See Code Civ. Proc., ¶ 369; *Wallner v. Parry Professional Bldg., Ltd.* (1994) 22 Cal.App.4th 1446, 1449 ("Although a limited partner is named as the plaintiff, it is the limited partnership which derives the benefits of the action.") Moving Defendant to give notice. **MOTION NO. 3:** Defendant Brent Smith and Millrock Investment Fund 1, LLC's demurrer to the Second Amended Complaint ("SAC") filed by Plaintiff Irene Adams is OVERULED. For the reasons discussed in the court's ruling on Defendant Colliers International Group, Inc.'s demurrer, the demurrer to Defendant Brent Smith and Millrock Investment Fund 1, LLC's demurrer is OVERRULED. Moving Defendant to give notice.

3	***24-01431292*** ***Arroyo vs. Swift Debt Relief, Inc.***	**1) Motion to Compel Production** **2) Motion to Compel Production** **MOTION NO. 1:** Plaintiff Brenda Arroyo's motion to compel defendant Swift Debt Relief Inc. to provide supplemental responses and all documents responsive to Plaintiff's Requests for Production, Set One, Request Nos. 3-8, 10-30, and 33-34 (ROA 93) is CONTINUED to _______. The rule requiring a good faith effort to meet and confer about discovery disputes "is designed to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order . . . [t]his, in turn, will lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes." (*Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1016.) "A reasonable and good-faith attempt at informal resolution entails something more than bickering . . . Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (*Townsend v. Superior Court* (1998) 61 Cal. App. 4th 1431, 1439.) In its opposition, Defendant states "[t]he parties can resolve their disputes if Plaintiff's counsel were to work with Swift's counsel to reach an agreement about the scope of the Requests and definitions." (ROA 182, Opp., 7:9-10.) Defendant's counsel states during a meet and confer call, he explained to Plaintiff's counsel that he believed the requests were improperly overbroad and that it made more sense for the parties to stipulate to certain definitions or to certain keywords and/or phrases that could assist with the identification of responsive documents. (ROA 186, Bozant Decl., ¶ 12.) Plaintiff's counsel refused to agree to any such compromise, and instead told Defendant's counsel that Defendants "should know" exactly what the requests mean based on the allegations in the complaint and the purportedly limited time period Plaintiff worked for Swift. (ROA 186, Bozant Decl., ¶ 12.) The court finds further conferences between the parties would be productive. Therefore, the parties are ordered to engage in additional attempts to meet and confer regarding the issues that remain in dispute, including a telephonic or in-person conference (not email). No later than 9 court days prior to the continued hearing, the parties are to file a Joint Statement which shall (1) describe the parties' attempts to meet and confer pursuant to this order, (2) identify each discovery request that remains in dispute, and (3) each party's position on the discovery request that remains in dispute. Plaintiff to give notice. **MOTION NO. 2:** Plaintiff Brenda Arroyo's motion to compel defendant Rockspur Financial LLC to provide supplemental response and all documents

		responsive to Plaintiff's Requests for Production, Set One, Request Nos. 3-8, 10, and 12-28 (ROA 102) is CONTINUED to _______. In its opposition, Defendant states "Plaintiff's counsel refused to negotiate with RockSpur's counsel regarding the overbroad definitions and lack of particularity with the Requests . . . Plaintiff's counsel could have properly met and conferred with RockSpur's counsel to address their issues prior to filing the motion to compel. Plaintiff's counsel's blatant refusal to make any concessions thwarted the parties' meet and confer efforts and resulted in Plaintiff's filing of four separate motions to compel." (ROA 199, Opp., 7:5-11.) The court finds further conferences between the parties would be productive. Therefore, the parties are ordered to engage in additional attempts to meet and confer regarding the issues that remain in dispute, including a telephonic or in-person conference (not email). No later than 9 court days prior to the continued hearing, the parties are to file a Joint Statement which shall (1) describe the parties' attempts to meet and confer pursuant to this order, (2) identify each discovery request that remains in dispute, and (3) each party's position on the discovery request that remains in dispute. Plaintiff to give notice.
6	***26-01550934*** ***Interdependence, Inc. vs. Randompod LLC***	**Demurrer to Complaint** Defendant Randompod LLC's Demurrer to Plaintiff's Complaint is OVERRULED. <u>Legal Standard:</u> At the pleading stage, the Court must liberally construe the complaint, drawing all reasonable inferences in favor of Plaintiffs' asserted claims. (*Liapes v. Facebook, Inc.* (2023) 95 Cal.App.5th 910, 919.) "A demurrer must dispose of an entire cause of action to be sustained. Thus, a court must overrule a demurrer to a cause of action if it is based on at least one viable theory of liability." (*Thompson v. Spitzer* (2023) 90 Cal.App.5th 436, 451–452 [cleaned up].) "[C]ourts may not turn a demurrer into a contested evidentiary matter by determining what the proper interpretation of the evidence is. A court errs when its decision reflects such a consideration of the evidence." (*Panterra GP, Inc. v. Superior Court of Kern County* (2022) 74 Cal.App.5th 697, 711 [cleaned up].) "A plaintiff is permitted to plead alternative inconsistent theories." (*Dubin v. Robert Newhall Chesebrough Trust* (2002) 96 Cal.App.4th 465, 477.) "Pleading alternative theories of recovery "does not run afoul of truthful pleading." (*Panterra GP, Inc. v. Superior Court of Kern County* (2022) 74 Cal.App.5th 697, 711, fn. 10.) <u>First Cause of Action – Breach of Contract:</u>

		The elements of this claim are "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (*D'Arrigo Bros. of California v. United Farmworkers of America* (2014) 224 Cal.App.4th 790, 800.) Contracts may be express or implied. Terms of an implied contract may be "determined by the parties' course of conduct." (*Varni Bros. Corp. v. Wine World, Inc.* (1995) 35 Cal.App.4th 880, 889.) A plaintiff may plead "the legal effect of the contract rather than its precise language." (*Miles v. Deutsche Bank National Trust Co.* (2015) 236 Cal.App.4th 394, 402.) This claim is based on Defendant's alleged breach of a Services Agreement and an Additional Shows Agreement by which the parties allegedly agreed Plaintiff would provide public relations and media services for Defendant's podcast production. (Complaint, ¶¶ 6-39, 58.) Plaintiff alleges Defendant failed to make full payments for Plaintiff's services. (¶ 60.) Defendant demurs on the grounds the Complaint is unclear regarding the contract terms and whether the contract was written, oral, or implied. (Motion, p. 4.) Moreover, Defendant contends the Complaint admits that Defendant expressly rejected Plaintiff's proposed written agreement, opting to proceed on a "'handshake agreement' founded upon ongoing invoicing." (Motion, pp. 10, 16.) At the pleading stage, Plaintiff has adequately alleged a breach of contract claim. Plaintiff alleges the existence of two agreements whose material terms are sufficiently alleged – Plaintiff would provide podcast-related services and Defendant would pay a specified amount. Defendant allegedly failed to pay the full amount which Plaintiff alleges was agreed to or implied by the parties' course of conduct. (¶ 60.) Defendant raises factual arguments which cannot be resolved at this stage. <u>Second Cause of Action – Breach of Implied Covenant:</u> This claim is based on the following: "Defendant breached the implied covenant by: (a) systematically underpaying invoices by exactly 50% for six consecutive months while never disputing that the full amounts were owed; (b) ceasing all payments without cause, notice, or justification; (c) dissolving FULL CIRCLE POD while owing $81,000 to avoid creditor obligations; (d) wrongfully terminating the agreements before their expiration dates; (e) failing to provide any revenue share data or payments; and (f) depriving Plaintiff of the benefit of its bargain under the Additional Shows Agreement by terminating prematurely after receiving the full benefit of Plaintiff's discounted services." (¶ 64.)

		Defendant alleges this claim is "superfluous" and "duplicative" of the first claim because it is based on the same alleged breaches of the parties' agreements. Plaintiff responds that it is based on separate conduct including failure to share revenue data, which prevented Plaintiff from calculating or collecting its promised share of YouTube advertising revenue without Defendant's disclosure of such information. Plaintiff also asserts it agreed to reduced fees based on Defendant's representations about the revenue sharing and Plaintiff's ability to benefit from audience growth. "The covenant of good faith and fair dealing, implied by law in every contract, exists merely to prevent one contracting party from unfairly frustrating the other party's right to receive the benefits of the agreement actually made. The covenant thus cannot be endowed with an existence independent of its contractual underpinnings. It cannot impose substantive duties or limits on the contracting parties beyond those incorporated in the specific terms of their agreement." (*Guz v. Bechtel Nat. Inc.* (2000) 24 Cal.4th 317, 349–350.) "A breach of the covenant of good faith and fair dealing does not give rise to a cause of action separate from a cause of action for breach of the contract containing the covenant." (*Smith v. International Brotherhood of Electrical Workers* (2003) 109 Cal.App.4th 1637, 1644, fn. 3.) At the pleading stage, Plaintiff has adequately pled an independent claim including Defendant's failure to provide data which was necessary for Plaintiff to calculate its alleged share of advertising revenue. <u>Third Cause of Action – Quantum Meruit:</u> This claim is pled in the alternative to Plaintiff's contract claims. (Complaint, ¶¶ 67-70.) "The requisite elements of quantum meruit are (1) the plaintiff acted pursuant to 'an explicit or implicit request for the services' by the defendant, and (2) the services conferred a benefit on the defendant." (*Port Medical Wellness, Inc. v. Connecticut General Life Insurance Company* (2018) 24 Cal.App.5th 153, 180.) Defendant argues, "The Third Cause of Action cannot simultaneously allege that the parties had express contracts with specific terms regarding compensation for services, and also allege that RandomPod should be required to pay the reasonable value of services under quantum meruit." (Motion, p. 20.) However, "[a] plaintiff is permitted to plead alternative inconsistent theories." (*Dubin v. Robert Newhall Chesebrough Trust* (2002) 96 Cal.App.4th 465, 477.) "Pleading alternative theories of recovery "does not run afoul of truthful pleading." (*Panterra GP, Inc. v. Superior Court of Kern County* (2022) 74 Cal.App.5th 697, 711, fn. 10.) Here, Plaintiff has adequately pled quantum meruit as an alternative theory or recovery based on the facts summarized above.

		<u>Fourth Cause of Action – Account Stated:</u> "The essential elements of an account stated are: (1) previous transactions between the parties establishing the relationship of debtor and creditor; (2) an agreement between the parties, express or implied, on the amount due from the debtor to the creditor; (3) a promise by the debtor, express or implied, to pay the amount due." (*Leighton v. Forster* (2017) 8 Cal.App.5th 467, 491.) Here, Plaintiff alleges this claim in the alternative to its contract claim on the grounds that Defendant's manager paid 29 prior invoices without objection before Defendant began paying only 50% of the invoiced amount. (¶¶ 74-78.) Defendant argues the Complaint fails to plead an agreement as to the amount due. Although there is now a dispute regarding the amount due, Plaintiff alleges that there was an implied agreement as to the amount due based on the parties' conduct, which is sufficient at the pleading stage.
10	***25-01458588*** ***Sommerfield vs. Cushman & Wakefield U.S., Inc.***	**1) Motion to Compel Answers to Form Interrogatories** **2) Motion to Compel Answers to Special Interrogatories** **3) Motion to Compel Further Responses to Form Interrogatories** **4) Motion to Compel Further Responses to Special Interrogatories** **5) Motion to Compel Production** **6) Motion to Compel Production** **MOTIONS 1-3** Plaintiff Jean Sommfield's motions to compel defendant Bank of America, N.A. to provide further responses to Plaintiff's Special Interrogatories, Set One; Form Interrogatories, Set One; and Requests for Production, Set One (ROA Nos. 69, 74, 79) are DENIED. Plaintiff's motions are untimely. "Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand." (Code Civ. Proc., §§ 2030.300, subd. (c), 2031.310, subd. (c).) The propounding party waives the right to compel further responses by delaying the motion beyond the 45-day deadline. (Code Civ. Proc., §§ 2030.300, subd. (c); 2031.310, subd. (c); see *Vidal Sassoon, Inc. v. Sup.Ct. (Halpern)* (1983) 147 Cal.App.3d 681, 683 [holding the deadlines for motions to compel further responses are "mandatory and the court may not entertain a belated motion to compel."]; *Golf & Tennis Pro Shop, Inc. v. Sup.Ct. (Frye)* (2022) 84 Cal.App.5th 127, 136-137 [motion filed 1 day late was untimely].)

On 12/22/25, after receiving several extensions, Defendant served responses to Plaintiff's Special Interrogatories, Set One ("SROG"); Form Interrogatories, Set One ("FROG"); and Requests for Production, Set One ("RFP"). (Wolf Decls., ¶ 4.) The responses consisted only of objections. (Wolf Decls., ¶ 4.) Plaintiff does not claim the responses were untimely.

Citing *Golf & Tennis Pro Shop, Inc.*, Plaintiff contends the motions are timely because the 45-day clock did not begin since Defendant served unverified responses. In *Golf & Tennis Pro Shop, Inc.*, the court held that the service of unverified responses which consists of <u>both substantive responses and objections</u> did not trigger 45-day time limit to bring motion to compel further responses even where the motion challenges only the objections. (*Id*. at pp. 135-136.) However, the court left open the question whether time starts to run where unverified responses contain <u>nothing but objections</u>. (*Id*. at p. 136 fn. 5.)

Here, Defendant's responses contained nothing but objections. Objection-only responses do not require verifications. (See Code Civ. Proc., §§ 2030.250, subds. (a), (c), 2031.250, subds. (a), (c); *Blue Ridge Ins. Co. v. Sup.Ct. (Kippen)* (1988) 202 Cal.App.3d 339, 344 [responses consisting entirely of objections need not be verified].) Thus,, the 45-day clock began to run when Defendant served its responses. Therefore, Plaintiff's deadline to file the instant motions was 2/9/26 (i.e., 45-days after 12/22/25, plus two court days for electronic service). (See Code Civ. Proc., §1013, 1010.6, subd. (a)(3).) Plaintiff did not file these motions until 5/7/26.

Plaintiff alternatively argues the motions are timely because Defendant provided Plaintiff with open extensions to file the necessary motions. However, the Code does not allow for open ended extensions. Rather, the Code requires the parties to agree, in writing, to a "specific later date." (See Code Civ. Proc., §§ 2030.300, subd. (c), 2031.310, subd. (c) [allowing an extension of the 45-daydeadline "on or before any *specific later date* to which the demanding party and the responding party have agreed in writing . . . ." (emphasis added)].) This language in the statute would be superfluous if the parties could agree to open ended extensions. Here, the parties did not agree to extend the 45-day deadline to a "specific later date."

Therefore, the motions are denied.

MOTION 4

Plaintiff Jean Sommfield's unopposed motion to compel defendant Cushman & Wakefield U.S., Inc. to provide responses to Plaintiff Form Interrogatories, Set One; and for monetary sanctions (ROA No. 107) is GRANTED.

A party's failure to timely respond to interrogatories results in a waiver of any objections to the requests. (Code Civ. Proc., § 2030.290, subd.

(a).) If a party to whom interrogatories fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. (Code Civ. Proc., § 2030.290, subd. (b).) The motion has no deadline nor a requirement to meet and confer before filing the motion. The court "shall" impose a monetary sanction against the losing party on a motion to compel unless it finds that party acted "with substantial justification" or other circumstances render the sanction "unjust." (Code Civ. Proc., § 2030.290, subd. (c).)

Here, Plaintiff properly served Form Interrogatories, Set One, on Defendant on 6/4/25. (Wolf Decl., ¶ 2.) Defendant never served responses despite promises to "have the discovery issues resolved." (Wolf, Decl., ¶¶ 6-7.)

Defendant Cushman & Wakefield is ORDERED to provide verified responses, without objection, to Plaintiff's Form Interrogatories, Set One, within 20 days.

Defendant is ORDERED to pay $1,750 in sanctions to Plaintiff within 20 days. (See Code Civ. Proc., §§ 2023.010, 2023.030, 2030.290, subd. (c) and Cal. Rules of Court, rule 3.1348.)

Plaintiff to give notice.

MOTION 5

Plaintiff Jean Sommfield's unopposed motion to compel defendant Cushman & Wakefield U.S., Inc. to provide responses to Plaintiff's Special Interrogatories, Set One; and for monetary sanctions (ROA No. 112) is GRANTED.

A party's failure to timely respond to interrogatories results in a waiver of any objections to the requests. (Code Civ. Proc., § 2030.290, subd. (a).) If a party to whom interrogatories fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. (Code Civ. Proc., § 2030.290, subd. (b).) The motion has no deadline nor a requirement to meet and confer before filing the motion. The court "shall" impose a monetary sanction against the losing party on a motion to compel unless it finds that party acted "with substantial justification" or other circumstances render the sanction "unjust." (Code Civ. Proc., § 2030.290, subd. (c).)

Here, Plaintiff properly served Form Interrogatories, Set One, on Defendant on 6/4/25. (Wolf Decl., ¶ 2.) Defendant never served responses despite promises to "have the discovery issues resolved." (Wolf, Decl., ¶¶ 6-7.)

Defendant Cushman & Wakefield is ORDERED to provide verified responses, without objection, to Plaintiff's Special Interrogatories, Set One, within 20 days.

		Defendant is ORDERED to pay $1,250 in sanctions to Plaintiff within 20 days. (See Code Civ. Proc., §§ 2023.010, 2023.030, 2030.290, subd. (c) and Cal. Rules of Court, rule 3.1348.) Plaintiff to give notice. **MOTION 6** Plaintiff Jean Sommfield's unopposed motion to compel defendant Cushman & Wakefield U.S., Inc. to provide responses to Plaintiff's Requests for Production of Documents, Set One; and for monetary sanctions (ROA No. 117) is GRANTED. The party who fails to respond waives any objection to the demand, including one based on privilege or on the protection for work product under Section 2018(a) of the Code of Civil Procedure. (Code Civ. Proc. § 2031.300, subd. (a).) When the party to whom the demand is directed fails to respond, the demanding party may move for an Order compelling a response and for monetary sanctions. (Code Civ. Proc., § 2031. 300, subd. (b).) The motion has no deadline nor a requirement to meet and confer before filing the motion. The court "shall" impose a monetary sanction against the losing party on a motion to compel unless it finds that party acted "with substantial justification" or other circumstances render the sanction "unjust." (Code Civ. Proc., § 2031.300, subd. (c).) Here, Plaintiff properly served Requests for Production of Documents, Set One, on Defendant on 6/4/25. (Wolf Decl., ¶ 2.) Defendant never served responses despite promises to "have the discovery issues resolved." (Wolf, Decl., ¶¶ 6-7.) Defendant Cushman & Wakefield is ORDERED to provide verified responses, without objection, to Plaintiff's Requests for Production of Documents, Set One, along with all responsive documents, within 20 days. Defendant is ORDERED to pay $1,250 in sanctions to Plaintiff within 20 days. (See Code Civ. Proc., §§ 2023.010, 2023.030, 2031.310, subd. (c) and Cal. Rules of Court, rule 3.1348) Plaintiff to give notice.
11	***26-01575242*** ***Yes Online Inc. vs. ProTab Laboratories***	**Order to Show Cause re: Preliminary Injunction** The Order to Show Cause Re: Preliminary Injunction is discharged. The temporary protective order is dissolved and the Court, in its discretion, declines to enter a preliminary injunction. Plaintiff has failed to provide admissible evidence of any harm beyond the pecuniary losses sought in the Complaint. Injunctions are rarely granted where damages provide an adequate remedy. (See *Thayer Plymouth Ctr., Inc. v. Chrysler Motors Corp.*

		(1967) 255 Cal.App.2d 300, 307; Code Civ. Proc., § 526(a)(4)-(5) [(4) When pecuniary compensation would not afford adequate relief. (5) Where it would be extremely difficult to ascertain the amount of compensation which would afford adequate relief].) Plaintiff relies upon the declarations of Sophia Anderson and Alex Rios to establish Defendant may be liquidating assets which could be used to satisfy any future judgment against Defendant in this action. Thus, Plaintiff claims an injunction is necessary to prevent Defendant from becoming insolvent during the pendency of this case. However, the references to communications with Ricardo Perez are inadmissible hearsay and the photographs cannot be authenticated because Anderson must rely on Perez's hearsay assertions as authentication. (Evid. Code, § 1200(a)-(b).) Plaintiff's inability to obtain Perez's cooperation does not relax the evidentiary standards. Thus, the Court cannot consider any evidence from Perez. Plaintiff's remaining evidence only demonstrates a possibility that Defendant is struggling financially. Anderson's conversations with Defendant's employees and counsel's declaration listing other actions against Defendant does not demonstrate injunctive relief is necessary. Thus, the Court finds Plaintiff has failed to show the relative harms favor issuing an injunction.
12	***24-01376026*** ***Zavala vs. General Motors LLC***	**Motion for Attorney Fees** Plaintiff's Motion for Attorney Fees is DENIED. The Court intends to enter an order of dismissal at the hearing. The Court has observed a trend in lemon law cases, nearly all of which settle before trial, which is absent from other civil litigation. The plaintiff files a notice of settlement of the entire case without disclosing to the Court any terms other than whether the settlement is unconditional or conditional, and then fails to follow through with filing of a request for dismissal, later filing a motion for attorney fees on grounds the parties agreed the Court would decide the issue of attorney fees and costs as part of their purported settlement. Under the facts of this case, this approach has no basis in law. "If an entire case is settled or otherwise disposed of, each plaintiff or other party seeking affirmative relief must immediately file written notice of the settlement or other disposition with the court . . . ." (Cal. Rules of Court, rule 3.1385(a)(1).) "Except as provided in (c) [conditional settlement] or (d) [compromise of claims of a minor or disabled person], each plaintiff or other party seeking affirmative relief must serve and file a request for dismissal of the entire case within 45 days after the date of settlement of the case. If the plaintiff or other party required to serve and file the request for dismissal does not do so, the court must dismiss the entire case 45 days after it receives notice of settlement unless good cause is shown why the case should not be dismissed." (Id., rule 3.1385(b).)

		"If the settlement agreement conditions dismissal of the entire case on the satisfactory completion of specified terms that are not to be performed within 45 days of the settlement, including payment in installment payments, the notice of conditional settlement served and filed by each plaintiff or other party seeking affirmative relief must specify the date by which the dismissal is to be filed." (Id., rule 3.1385(c)(1).) "If the plaintiff or other party required to serve and file a request for dismissal within 45 days after the dismissal date specified in the notice does not do so, the court must dismiss the entire case unless good cause is shown why the case should not be dismissed." (Id., rule 3.1385(c)(2).) The use of "must" and "shall" in these provisions establishes the mandatory nature of the Court's duty to dismiss after the applicable time period has passed, subject only to the good cause exception. (See *Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644, 650 ["court entered the order to fulfill the mandatory duty to dismiss settled cases"].) The Judicial Council has adopted for mandatory use Form CM-200, Notice of Settlement of Entire Case (Notice), a form designed to inform the court and parties a settlement has been reached. The Notice states, "the entire case has been settled" and requires the signer to state in paragraph 1 whether the settlement is unconditional or conditional. The Notice requires a signature under penalty of perjury from the filer. Due process requires a court to provide notice prior to dismissing a case, including after filing of a Notice. (*Lee v. Placer Title Co.* (1994) 28 Cal.App.4th 503, 510.) The Court's jurisdiction to enforce a settlement agreement depends on a clear written or oral stipulation of the parties requesting retention of jurisdiction under Code of Civil Procedure section 664.6. Otherwise, the court loses jurisdiction upon dismissal. (See *DeSaulles v. Community Hospital of Monterey Peninsula* (2016) 62 Cal.4th 1140, 1155 [parties must ask court to retain jurisdiction before dismissal deprives court of jurisdiction].) Here, on 11/12/25, Plaintiffs filed a Notice stating the parties had reached a conditional settlement of the entire case and representing under penalty of perjury the entire case had been settled and a request for dismissal would be filed no later than 3/9/26. Other than the Notice, no party provided the court with details of the settlement, including, e.g., whether it was entered into following acceptance of a Code of Civil Procedure section 998 offer to compromise or whether the parties had agreed to request the court to retain jurisdiction to enforce settlement terms under Code of Civil Procedure section 664.6. In reliance on Plaintiffs' representation, on 11/21/25, the court issued an order stating a request for dismissal must be filed within 45 days after fulfillment of the conditional settlement terms. An OSC Re Dismissal was set for 3/5/26 and jury trial was vacated.

		On 4/16/26, the Court continued the OSC Re: Dismissal to 8/20/26 based on Plaintiffs' status report filed 4/9/26, which stated the parties were unable to come to an agreement on Plaintiffs' attorney fees and requested a continuance of the OSC to the same date as the attorney fee hearing. Plaintiffs never filed a request for dismissal. On 12/12/2025, Plaintiffs filed a memorandum of costs, and on 3/11/2026, Plaintiffs filed a motion for attorney fees, designating a hearing date of 8/20/26. The motion stated the parties reached a settlement on 9/11/25 in which they agreed Plaintiffs were the prevailing party and Plaintiffs' fees and costs could be decided by motion. (p. 6.) Plaintiffs never filed a request for dismissal, and the parties never requested the Court retain jurisdiction under section 664.6. If Plaintiffs wished to have a motion for attorney fees heard, it was Plaintiffs' duty to file a motion and have it heard prior to the proposed dismissal date in the notice of settlement. The Court considers the filing of the Notice under penalty of perjury representing the entire case has been settled a misrepresentation to the Court if, indeed, additional law and motion over settlement terms is contemplated, as it apparently was here. Settlement of the "entire case" means just that. Even if the parties had requested the court to reserve jurisdiction under section 664.6, there would be no settlement of attorney fees to enforce, because terms were not originally agreed upon by the parties. (See *Levitz v. The Warlocks* (2007) 148 Cal.App.4th 531, 535 ["A settlement with open material terms is not a 'conditional settlement.' To the contrary, it is not a settlement at all because, like all contracts, it is not binding until the settling parties agree on all its material terms."].) Further, Plaintiffs "must follow the procedures outlined in [California Rules of Court, rule 3.1385] subdivisions (a) and (b) even if the parties settle the case and agree to dismiss under the provisions of Code of Civil Procedure section 664.6." (Advisory Com. com., Cal. Rules of Court, rule 3.1385.) And, "Code of Civil Procedure section 664.6 allows for but does not mandate the dismissal of cases with conditional settlements either upon stipulation of the parties or on the court's own motion. Subdivision (c) provides an alternative process for cases with a conditional settlement in which dismissal is not sought under Code of Civil Procedure section 664.6" (Id.) Because such issues are not material to the motion, the court will not decide whether the misrepresentation is material or potentially subject to sanctions, whether a true settlement or only an agreement to agree was reached, arguments concerning enforceability of the settlement, and/or whether some other procedure was viable. The Court rules only that the chosen course of action was not.

13	***25-01533027*** ***Zuniga vs. 4Gen Digital, Inc.***	**Motion to Strike - Anti SLAPP** Defendants 4Gen Digital, Inc., Craig M. Thomas, Jacqueline Thomas, and Alexandria C. Phillips' Special Motion to Strike the Complaint (Anti-SLAPP) is CONTINUED to ________ at 10:00 a.m., in Department C33. On 8/17/26, Plaintiff filed an objection to Defendants' reply (ROA 66) and evidentiary objections (ROA 68) on the ground Plaintiff has not consented to electronic service. (ROA 70.) Self-represented parties are to be served by non-electronic methods unless they affirmatively consent to electronic service. (Cal. Rules of Court, rules 2.251, subd. (c)(3)(B); 2.253, subd. (b)(3).) Defendants' proof of service reflects the motion, reply, and evidentiary objections were served by electronic service. Plaintiff contends he has never consented to electronic service or filed a notice of consent to electronic service in this action. Plaintiff contends that due to invalid service he has not received the requisite notice of the reply under Code of Civil Procedure section 1005, subdivision (b). Service on Plaintiff by electronic service without express consent was insufficient. The Court CONTINUES the hearing on Defendants' Motion to _______ at 10:00 a.m. in Department C33. The Court ORDERS Defendants to serve Plaintiff the reply and evidentiary objections by non-electronic means within the statutory notice period before the new hearing date.